

22STCV04087 22STCV04087

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Case Number: 22STCV04087 Hearing Date: September 24, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 24, 2026

Case Name: Caldwell v. Live Nation World

Wide, Inc., et al.

Case

No.: 22STCV04087

Matter: Motion for Order for Pretrial Discovery of Financial
Condition

Moving

Party: Plaintiff Estate of

Darrell Caldwell

Responding Party: Defendants Live Nation Worldwide, Inc. and C3 Presents, LLC

Tentative

Ruling: Plaintiff Estate of

Darrell Caldwell's Motion for Pretrial Discovery of the Financial Condition of
Defendants Live Nation Worldwide, Inc, and C3 Presents LLC is denied.

Plaintiffs Darrylene Corniel

("Corniel") and Estate of Darrell Caldwell ("Estate") (collectively

"Plaintiffs") filed their action against Live Nation Worldwide Inc. ("Live Nation"), C3 Presents LLC ("C3"), Bobby Dee Presents, Inc., Snoop Dogg's LLC, Jeff Shuman, University of Southern California, LAFC Sports LLC, Major League Soccer, LLC, CISS Management Group, CI Security Specialists, Inc., and Does 1 to 100. The FAC alleges three causes of action on behalf of the Estate: (1) wrongful death sounding in negligence; (3) wrongful death – premises liability; and (5) wrongful death – negligent hiring, supervision, training, and/or retention. The FAC alleges three causes of action on behalf of Corniel for: (2) survival action sounding in negligence; (4) survival action – premises liability; and (6) survival action – negligent hiring, supervision, training, and/or retention. The FAC alleges that on December 18, 2021, Darrell Caldwell, also known as Drakeo the Ruler ("Decedent"), was set to perform at the Once Upon A Time in LA Music Festival ("Festival"), where, allegedly, a dispute arose that resulted in his wrongful death ("Subject Incident").

On June 26, 2022, the Court consolidated all three cases under the leading case Caldwell v. Live Nation World Wide, Inc., et al.

Plaintiff

Estate moves for a Court Order allowing it to conduct pretrial discovery concerning Live Nation and C3's financial condition pursuant to Civil Code section 3295, subdivision (c), on behalf of the Estate's claims only.

Live Nation

and C3 (collectively "Defendants") filed an untimely opposition. The Court will address this issue within this ruling.

Legal Standard

Civil

Code section 3295, subdivision (c) states that a plaintiff shall not be permitted to conduct discovery regarding a Defendant's profits or financial condition, "unless the court enters an order permitting such discovery pursuant to this subdivision." (Civ. Code., § 3295, subd. (c).) "Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the

plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial." (Ibid.)

Analysis

Plaintiff

Estate moves for an order permitting narrowly tailored pretrial discovery into Defendants' current financial condition.

Preliminary

Issues

First,

Defendants filed an untimely opposition. "All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ Proc., §1005, subd. (b).)

Defendants'

opposition was due on September 11, 2026, per Code of Civil Procedure section 1005, subdivision (b). Defendants filed their opposition on September 16, 2026. Plaintiff's reply was due on September 17, 2026. Defendants contend that the result of filing an untimely opposition was because the Court did not set a briefing schedule when the hearing on the motion was advanced. (Nilsen Decl., ¶ 2.) The Court finds that Defendant's explanation is not a sufficient excuse for failure to comply with the requirements of Code of Civil Procedure section 1005, subdivision (b).

Thus, the

Court declines to exercise its discretion to consider Defendants' untimely opposition. Because the Court declines to consider Defendants' untimely opposition, the Court will not rule on the parties' evidentiary objections.

Merits

of Plaintiff's Motion

Plaintiff

argues that it met the "substantial probability" standard that the Estate will prevail

on the claim pursuant to Section 3294.

For the

Court to grant Estate's motion, "there is a substantial probability [they] will prevail on [their] claim for punitive damages, to mean that before a court may enter an order permitting discovery of a defendant's financial condition, it must (1) weigh the evidence submitted in favor of and in opposition to motion for discovery, and (2) make a finding that it is very likely the plaintiff will prevail on his claim for punitive damages. In this context, we interpret the words "substantial probability" to mean "very likely" or "a strong likelihood" just as their plain meaning suggests." (Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758.)

Plaintiff

contends that it has shown a substantial probability that the Estate will prevail on a claim for punitive damages by a finding of malice and oppression. However, the Court is not persuaded by Plaintiff's argument.

"Malice"

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression "is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Id. at subd. (c)(2).) For a corporate employer to be held liable for punitive damages, Civil Code section 3294, subdivision (b) requires that "with respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) "[T]he Legislature intended that principal liability for punitive damages not depend on employees' managerial level, but on the extent to which they exercise substantial discretionary authority over decisions that ultimately determine corporate policy." (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 576.)

Plaintiff

argues that Kelly and Williams exercised substantial discretionary authority over C3's security policy. Plaintiff contends that because Defendants hired security for the artist entrance and not NPB, this establishes their decision-making power. (Richards Decl., Ex. I, 81:17-22.) Plaintiff relies on

Exhibit T to contend that C3 “retained inspection, acceptance, and cancellation rights” of the Festival’s security plans. (Mot., 11:1-13.) However, Exhibit T is not attached to their evidence, making this argument inapplicable.

Plaintiff

also argues that C3 invited decedent into a restricted area and failed to keep weapons outside the area, which constitutes despicable conscious disregard and cruel, unjust hardship, not merely negligent execution. Plaintiff further assert that this failure satisfies the substantial probability standard because C3 did not follow proper procedures, knew the parties were “gang rivals,” and knew they would be permitted backstage, and that one performer had a group of 40 guests. These arguments are conclusory, and the Court finds that the evidence it cites does not support that finding. Additionally, a post-Festival debrief does not support a substantial probability of finding Plaintiff Estate will prevail on a claim for punitive damages.

Thus,

Plaintiff did not meet its burden as to C3.

Plaintiff

argues that Shuman exercised final, independent authority over essential event policy because Shuman made the final decision on the performance times and approved artist-only credentials. However, the Court is not persuaded. A managing agent is limited to include “only those corporate employees who exercise substantial independent authority and judgment in their corporate decision-making so that their decisions ultimately determine corporate policy.” (White, supra, 21 Cal.4th 563, 566–567.) Plaintiff relies on post-conduct reports that argue that Shuman bypassed security measures. However, the Court finds that the evidence does not make that showing. Plaintiff also argues that Live Nation’s access-control decisions support corporate authorization, malice, and oppression. However, the Court finds that Plaintiff’s argument is underdeveloped.

Thus,

Plaintiff did not meet its burden as to Live Nation.

Overall,

Plaintiff did not meet its burden of showing a substantial probability that Estate will prevail on a claim for punitive damages by a finding of malice and oppression.

Therefore, Plaintiff's
motion is denied in its entirety.

Conclusion

Plaintiff
Estate of Darrell Caldwell's motion is denied.